



Notification Waiver Determination

MedHealth – Connect Allied Health

Acquisition	MedHealth Pty Limited (MedHealth) applied for a notification waiver in respect of its proposed acquisition of the business and assets of Connect Allied Health Pty Ltd (Connect), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	21 May 2026

Parties to the Acquisition	The acquirer, MedHealth is an Australian subsidiary of the ExamWorks Group (ExamWorks). ExamWorks is a United States-based independent provider of services including independent medical examinations, peer reviews, bill reviews, Medicare compliance, record retrieval, document management and related services. ExamWorks operates in Australia through MedHealth, which provides a range of services to a variety of businesses and consumers across the private and public sectors. MedHealth's Allied Health Services Division provides allied health services to a range of patients including NDIS participants, private health insurance clients and customers from other funding sources (for example, Department of Veterans' Affairs, Medicare, My Aged Care and workers compensation) across Australia through a number of brands. Its brands include Ability Action Australia and Living to the Max which operate in South Australia. In South Australia, MedHealth provides occupational therapy, speech pathology, exercise physiology, and physiotherapy allied health services. The target, Connect, was founded in 2016 and is a multi-disciplinary AHS provider operating in South Australia. Connect provides clinic and community-based speech therapy, occupational therapy, physiotherapy, positive behavioural support, psychology and podiatry services across Adelaide and the Riverland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the parties' combined share in the supply of allied health services in South Australia is low and the increment arising from the Acquisition would be small b. there are numerous alternative suppliers of various allied health services to customers in Adelaide and regions in South Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act